

Bani Singh v. State of U.P. & Ors.

Allahabad High Court · Division Bench · 10 January 2020 · Writ-C No. 750 of 2020 · **Writ disposed; petitioner to appear before the Executive Engineer with objections; speaking final order within four weeks; coercive action stayed for seven weeks; Section 127 appeal if aggrieved.**

HEADNOTE

Challenging a recovery citation for want of hearing and alleged non-compliance with the U.P. Electricity Supply Code, 2005, the consumer obtained no merits decision. The Division Bench directed him to appear before the Executive Engineer with objections and evidence, required a speaking final order within four weeks, stayed coercive action for a limited period, and left any remaining grievance to the statutory appeal under Section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Bani Singh filed a writ petition in the Allahabad High Court seeking certiorari to quash a recovery citation dated 3 July 2019 issued by Respondent No. 3, the Executive Engineer. He alleged that the electricity department was taking coercive recovery action without an opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the petitioner and for the electricity department were heard on the petition.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

speaking-final-order-on-recovery-then-section-127-appeal

HOLDING

Without examining the recovery citation on merits, the Court directed the petitioner to appear before the Executive Engineer with his objection and evidence; the Engineer was to pass a speaking and reasoned final order within four weeks. Coercive action was stayed for seven weeks or until disposal of the objection, whichever earlier, with automatic vacation on default in filing the objection and automatic revival of the citation if the petitioner failed to appear. If aggrieved by that final order, the petitioner was left to appeal under Section 127 of the Electricity Act, 2003 in accordance with law. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking final order on the petitioner's objections to the recovery citation, the Court left any further grievance to the Section 127 appeal and did not quash the citation. ¶ 1

final-assessment-order-relegates-assessee-to-section-127-appeal The Court required the Executive Engineer to pass a final speaking order first, and held that if the petitioner was aggrieved by that final order he could appeal under Section 127. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 3 JULY 2019

The citation was neither quashed nor upheld; coercive action was only stayed pending a speaking final order. ¶ 1

NOT DECIDED — WHETHER THE DEPARTMENT FAILED TO FOLLOW THE U.P. ELECTRICITY SUPPLY CODE, 2005 OR DENIED A HEARING

The allegation was recorded but not examined. ¶ 1

